

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                 |                                            |                                                       |                                               |                                 |
|--------------------------------------------------|-----------------------------------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Jonathan Phillips               | Team:<br>Team # 1                                               | CCRB Case #:<br>201012765                  | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                 |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 09/05/2010 5:03 PM   | Location of Incident:<br>§ 87(2)(b); 47th Precinct stationhouse | 18 Mo. SOL<br>3/5/2012                     | Precinct:<br>47                                       |                                               |                                 |
| Date/Time CV Reported<br>Sun, 09/19/2010 4:55 PM | CV Reported At:<br>CCRB                                         | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sun, 09/19/2010 4:55 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)           | Shield | TaxID  | Command |
|------------------------------|--------|--------|---------|
| 1. POF Natalia Guzmanmorales | 00873  | 941873 | 047 PCT |
| 2. POM Michael Verbrugge     | 16823  | 940835 | 047 PCT |
| 3. POM John Mcloughlin       | 26642  | 941073 | 047 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM William King | 28701     | 922592 | 047 PCT  |

| Officer(s)                    | Allegation                                                                                                                                                | Investigator Recommendation |
|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Natalia Guzmanmorales | Abuse: In front of § 87(2)(b) in the Bronx PO Natalia Guzman-Morales stopped § 87(2)(b)                                                                   | A . Substantiated           |
| B . POF Natalia Guzmanmorales | Force: In front of § 87(2)(b) in the Bronx PO Natalia Guzman-Morales struck § 87(2)(b) with an asp.                                                       | B . Exonerated              |
| C . POM Michael Verbrugge     | Force: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge used physical force against § 87(2)(b)                                                    | C . Unsubstantiated         |
| D . POF Natalia Guzmanmorales | Discourtesy: In front of § 87(2)(b) in the Bronx and at the 47th Precinct stationhouse PO Natalia Guzman-Morales spoke obscenely and rudely to § 87(2)(b) | D . Unsubstantiated         |
| E . POM Michael Verbrugge     | Discourtesy: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge spoke obscenely and rudely to § 87(2)(b)                                            | E . Unsubstantiated         |
| F . POF Natalia Guzmanmorales | Force: At the 47th Precinct stationhouse PO Natalia Guzman-Morales used physical force against § 87(2)(b)                                                 | F . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)          | § 87(2)(b)                                                                                                                                                | § 87(2)(b)                  |

### Case Summary

§ 87(2)(b) called the Civilian Complaint Review Board (CCRB) on September 19, 2010, and filed the following complaint via the call-processing system. At approximately 5:03 p.m. on September 5, 2010, PO Natalia Guzman-Morales and PO Michael Verbrugge of the 47<sup>th</sup> Precinct responded to § 87(2)(b) in the Bronx in regards to a 911 call reporting an assault in progress. After resolving the issue within the building, both officers exited the building and arrested § 87(2)(b) § 87(2)(b). The following allegations resulted from this incident:

- **Allegation A: Abuse of Authority: In front of § 87(2)(b) in the Bronx PO Natalia Guzman-Morales stopped § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegation A be substantiated.**

- **Allegation B: Force: In front of § 87(2)(b) in the Bronx PO Natalia Guzman-Morales struck § 87(2)(b) with an asp.**

§ 87(2)(g)

It is therefore recommended that **Allegation B be exonerated.**

- **Allegation C: Force: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge used physical force against § 87(2)(b)**
- **Allegation D: Discourtesy: In front of § 87(2)(b) in the Bronx and at the 47<sup>th</sup> Precinct stationhouse PO Natalia Guzman-Morales spoke obscenely and rudely to § 87(2)(b)**
- **Allegation E: Discourtesy: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge spoke obscenely and rudely to § 87(2)(b)**
- **Allegation F: Force: At the 47<sup>th</sup> Precinct stationhouse PO Natalia Guzman-Morales used physical force against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegations C-F be unsubstantiated.**

- § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

## Results of Investigation

### Civilian Statements

#### Complainant/Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was a § 87(2)(b) African-American male with black hair and brown eyes who § 87(2)(b).
- § 87(2)(b) reported this incident to the CCRB on September 19, 2010 (encl. 4). He provided a telephone statement on October 15, 2010 (encl. 5D) and was interviewed at the CCRB on October 25, 2010 (encl. 5A). § 87(2)(b) provided additional telephone statements on March 29, 2011, and September 6, 2011 (encl. 5E-5F) § 87(2)(g)

#### CCRB Statement

At approximately 5:00 p.m. on September 5, 2010, § 87(2)(b) arrived outside § 87(2)(b) in the Bronx, a five-story residential building, after walking from his home located at § 87(2)(b). He was wearing blue jeans and a dark-colored button-up dress shirt. § 87(2)(b) co-owns a record label with § 87(2)(b) a resident of § 87(2)(b) and had arranged to meet him outside the building in order to travel together to an interview they had scheduled with a musician. § 87(2)(b) and § 87(2)(b) approached the building simultaneously from opposite directions and converged at the corner of § 87(2)(b) and § 87(2)(b) where they spoke briefly for about two seconds. § 87(2)(b) explained that he was entering the building to change his clothes and § 87(2)(b) told him that he would remain at the corner. § 87(2)(b) stood on the sidewalk facing § 87(2)(b) and had his back turned towards the staircase that leads to the courtyard in front of the building's entrance. He denied ever sitting on or ascending the stairs. § 87(2)(b) did not shake hands with § 87(2)(b) did not exchange any items with him, and did not speak to any other pedestrians as he waited on the sidewalk outside the building for § 87(2)(b) to return. After § 87(2)(b) entered the building, § 87(2)(b) used his cell phone to place calls to his mother and his wife. Because his back was facing the staircase leading to the courtyard in front of the building, § 87(2)(b) could not determine whether there was pedestrian traffic into or out of the building. He stated that a group of children were skateboarding in front of the staircase.

Within three minutes of his arrival § 87(2)(b) saw a marked RMP drive down § 87(2)(b) and park outside the building, about ten feet from where he was standing. PO Natalia Guzman-Morales (identified by § 87(2)(b) as "Morales," which he read off the nameplate, and described as a uniformed Hispanic female in her thirties who stood 5'3", 125 lbs.) and PO Michael Verbrugge (identified by the CCRB and described by § 87(2)(b) as a uniformed Caucasian male in his thirties who stood 6', 180 lbs.) approached the building and walked around the corner towards a basement apartment. The officers did not speak to § 87(2)(b) before disappearing around the side of the building. § 87(2)(b) suspected that they were handling a situation inside the basement unit and remained on the sidewalk near the corner speaking to his wife on his cell phone.

Soon after, PO Guzman-Morales and PO Verbrugge returned outside. PO Guzman-Morales approached § 87(2)(b) who was in the same position on the sidewalk facing § 87(2)(b), interrupted the telephone conversation he was having with his wife, and requested that he produce his identification. § 87(2)(b) never learned why PO Guzman-Morales requested to see his

identification. Without acknowledging PO Guzman-Morales, § 87(2)(b) told his wife that he would call her back as he disengaged the telephone conversation with his left hand and reached towards his rear pocket with his right hand to remove his wallet and identification. Before he was able to remove his identification, PO Morales snatched the cellular phone from his left hand without issuing any additional commands. § 87(2)(b) asked, “What are you doing?” With PO Verbrugge standing behind her, PO Guzman-Morales removed and extended her baton and struck § 87(2)(b) approximately ten times in the left knee as she repeatedly yelled, “Get on your knees!” § 87(2)(b) denied initiating any physical contact with PO Guzman-Morales before she struck him with the baton and denied reaching to retrieve his cell phone from her.

During the time that he was struck with the baton, § 87(2)(b) stood on the sidewalk, did not fall to the ground, and did not resist. After nearly one minute passed, PO Guzman-Morales pushed § 87(2)(b) in the chest against the building, causing him to fall to the ground between two scaffolding poles. § 87(2)(b) landed on his back, whereby PO Verbrugge intervened, placed his foot into § 87(2)(b)'s genitals, and rubbed it there for approximately thirty seconds. § 87(2)(b) likened this action to that of § 87(2)(b) squashing a cigarette butt. § 87(2)(b) attempted to grab PO Verbrugge's boot and prevent him from continuing this action. PO Verbrugge eventually grabbed § 87(2)(b) by the hand, spun him around, handcuffed him, and lifted him to his feet. During the process § 87(2)(b)'s head collided with the scaffolding pole. § 87(2)(b) denied resisting at any point during his arrest and denied that any officer sustained any injuries, though he speculated that any injury sustained by an officer was inflicted by another officer.

After § 87(2)(b) was handcuffed, PO Verbrugge ushered § 87(2)(b) towards the RMP. Along the way § 87(2)(b) noticed his cell phone lying on the sidewalk and requested that either PO Guzman-Morales or PO Verbrugge retrieve it. Both officers responded, “Shut the fuck up.” Once he was secured inside the RMP, § 87(2)(b) observed a large crowd of onlookers, including § 87(2)(b)'s mother (whose name § 87(2)(b) did not know) and § 87(2)(b) himself, who was using his cell phone to record what was happening. § 87(2)(b) could not testify as to what portion of the incident the crowd of onlookers witnessed or at what point he first became aware of their presence outside.

At the 47<sup>th</sup> Precinct stationhouse outside the cell where § 87(2)(b) was about to be lodged, PO Verbrugge asked PO Guzman-Morales whether she was going to remove § 87(2)(b)'s handcuffs before lodging him in the jail cell. PO Guzman-Morales replied, “No, fuck him” as she kicked § 87(2)(b) one time in the back into the cell. No other officers apart from PO Verbrugge were present when this occurred. No other inmates were present in the cell area. Eventually, EMS responded to the stationhouse and transported § 87(2)(b) to § 87(2)(b), where he was prescribed various pain medications. He had deep bruising to his left knee that prohibited him from walking.

**Witness:** § 87(2)(b)

### **Telephone Statement**

§ 87(2)(b) provided a telephone statement on September 7, 2011 (*encl. 6B*). At approximately 5:00 p.m. on September 5, 2010, § 87(2)(b) exited his building located at § 87(2)(b) in the Bronx, greeted his friend, § 87(2)(b) and explained that he needed to change his clothing indoors and would return outdoors shortly. The two had arranged over the telephone to meet outside the building in order to travel together to an event in Queens.

§ 87(2)(b) was standing outside the building on the public sidewalk less than two feet from the staircase leading towards the courtyard in front of the building's entrance. He was facing § 87(2)(b) and was speaking on his cell phone. § 87(2)(b) was not standing on the staircase and was never observed by § 87(2)(b) seated on the staircase. Had there been pedestrians attempting to enter or leave the building and use the staircase, § 87(2)(b) would not have obstructed their movement. There were in fact no pedestrians observed by § 87(2)(b) on the sidewalk outside his building. Parked near the far corner of the building in front of a path leading to the residence of the building's superintendent was at least one marked NYPD vehicle. After the one-minute greeting, § 87(2)(b) told § 87(2)(b) "Wait right here. I'll be back," and returned to his apartment to change his clothes.

After changing his clothes inside, § 87(2)(b) was alerted by his § 87(2)(b) niece, § 87(2)(b) that the police were outside forcefully dealing with § 87(2)(b). § 87(2)(b) grew concerned that the individual described by his niece was § 87(2)(b) and rushed outside. Upon arriving outdoors § 87(2)(b) saw PO Natalia Guzman-Morales (identified by the CCRB and described as a uniformed Hispanic female) reach for and grab § 87(2)(b) by his hands as § 87(2)(b) continued his telephone conversation. § 87(2)(b) was telling PO Guzman-Morales, "I'm on the phone, you'll have to wait." PO Guzman-Morales grabbed § 87(2)(b)'s phone, tossed it onto the ground, and reached and grabbed § 87(2)(b) by his hands. § 87(2)(b) resisted PO Guzman-Morales' attempt to gain control over his hands and handcuff him by pulling his arms away from her, severing her grasp of his hands. § 87(2)(b) "stood strong" and prevented PO Guzman-Morales, who was clearly not strong enough to subdue § 87(2)(b) from handcuffing him.

At least five uniformed male officers noticed PO Guzman-Morales struggling with § 87(2)(b) and intervened to provide assistance. During this time, § 87(2)(b) stood ten feet away protesting, "What seems to be the problem? He was just out here waiting for me so we could leave." PO Guzman-Morales responded, "Shut the fuck up and get back!" The officers attempted to pull § 87(2)(b)'s hands behind his back but he refused to surrender them because he hadn't done anything wrong. He continually pulled his arms away from the officers. Eventually § 87(2)(b) was pushed to the ground on his stomach and several of the uniformed male officers began stepping on him in the back and legs. § 87(2)(b) never saw an officer punch § 87(2)(b). § 87(2)(b) never bit any of the officers, never pushed any of them, and never exerted force against the officers involved in handcuffing him. § 87(2)(b) was handcuffed after an approximate three-minute struggle.

Before speaking to § 87(2)(b) over the telephone on September 7, 2011, the undersigned investigator had made numerous attempts at reaching him. § 87(2)(b) when interviewed, did not supply the CCRB with contact information for his friend, § 87(2)(b). Lexis-Nexis searches yielded only an address where § 87(2)(b) resided and did not yield a telephone number where he could be reached. A contact letter was sent to § 87(2)(b) on January 25, 2011. Between January 25 and March 29, 2011, the undersigned investigator placed four telephone calls and sent one email to § 87(2)(b) in pursuit of additional contact information for § 87(2)(b). On March 29, 2011, § 87(2)(b) was reached over the telephone and provided § 87(2)(b)'s telephone number.

Four telephone calls were placed to § 87(2)(b) between March 31 and May 20, 2011, in which several messages were left prompting § 87(2)(b) to contact the CCRB. Only during a fifth telephone call placed on September 7, 2011, was § 87(2)(b) reached. During the phone call § 87(2)(b) agreed to be interviewed at his home on September 8, 2011. However, § 87(2)(b) was not present for his interview appointment on September 8, 2011. While outside § 87(2)(b)'s home the undersigned investigator called him and learned that § 87(2)(b) was at work and would not return home until several hours later. The investigator attempted to arrange a time when § 87(2)(b) could appear at the CCRB to provide testimony, but § 87(2)(b) declined to schedule an appointment. Voicemail messages were left for § 87(2)(b) prompting him to contact the CCRB to schedule a second appointment on September 15 and October 19, 2011. Because § 87(2)(b) did not cooperate with the investigation, the video footage mentioned by § 87(2)(b) was neither discussed nor received at the CCRB.

**Witness:** § 87(2)(b)

### **Telephone Statement**

§ 87(2)(b) provided a telephone statement on July 12, 2011 (*encl. 6A*). On September 5, 2010, § 87(2)(b) was arrested along with three other individuals (identified by the CCRB as § 87(2)(b), § 87(2)(b), and § 87(2)(b) § 87(2)(b) at § 87(2)(b) in the Bronx, unrelated to the arrest of § 87(2)(b). The individuals were brought to the 47<sup>th</sup> Precinct stationhouse. Upon arrival at the stationhouse § 87(2)(b) saw § 87(2)(b) (identified by the CCRB) already locked in a jail cell complaining to PO1 (described as a slim Hispanic male) about the tight handcuffs around his wrists and the way the officers beat him during his arrest. § 87(2)(b) was saying things like, "Officer, look how you handcuff my hand behind me, and have me well beat" and "Look how you handled me."

§ 87(2)(b) was placed in a cell located on the opposite side of the room about fifteen feet from the cell where § 87(2)(b) was secured. PO1 spoke to § 87(2)(b) from the opposite side of the gate for about four minutes, instructing him to calm down and explaining that he would remove the handcuffs. § 87(2)(b) never saw a female officer speak to § 87(2)(b) inside the cell and never saw a female officer near the cell area. § 87(2)(b) denied observing any officer use any physical force against § 87(2)(b) while he was inside the cell and denied hearing an officer use profanity while speaking to him. § 87(2)(b) never learned why § 87(2)(b) was arrested.

**Witness:** § 87(2)(b) § 87(2)(b)

§ 87(2)(b) is the superintendent of § 87(2)(b)

During a canvass of § 87(2)(b) on September 8, 2011, § 87(2)(b) § 87(2)(b) stated that his son, § 87(2)(b) was having a dispute with his mother about his performance at school on September 5, 2010. § 87(2)(b) was being emotional and his mother suggested that § 87(2)(b) call 911. Two uniformed police officers, one a Hispanic female and one a Caucasian male, responded to the building. The Hispanic female spoke to § 87(2)(b) wife in Spanish. No arrests or summons resulted. § 87(2)(b) and his family were inside the building for the entire duration leading up to the officers' arrival at the building and remained inside their basement apartment after the officers left. § 87(2)(b) was unfamiliar with any arrests occurring outside his building following the officers' response.

**Canvass of** § 87(2)(b)

On September 8, 2011, several photographs were taken of the exterior of the building and the surrounding sidewalk, depicting the length and scale of the staircase leading into the building (*encl. 3C-3K*). One photograph (*encl. 3I*) contrasts a standard 11" X 8.5" piece of paper with the staircase, which is estimated to be at least eight feet wide. The photograph illustrates that ample space would exist for pedestrians to circumvent any civilian seated on the stairs. A sign is posted outside the building indicating that the building participates in the NYPD's Clean Halls Program.

**Attempts to Contact Civilians**

§ 87(2)(b) never supplied either a name or contact information for his mother despite being asked. He agreed to reach out to his mother and explain the CCRB's interest in speaking to her. § 87(2)(b) denied having contact information for his niece, § 87(2)(b) and stated that she was currently attending college in Boston. A Lexis-Nexis search produced negative results for contact information for § 87(2)(b)'s niece, § 87(2)(b).

To investigate the allegations raised by § 87(2)(b) at the stationhouse, the CCRB mailed letters to individuals named in the command log (discussed below) who were charged § 87(2)(b) along with § 87(2)(b) in arrests unrelated to § 87(2)(b)'s which occurred at § 87(2)(b) in the Bronx. Contact letters were mailed to § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) – the other individuals arrested along with § 87(2)(b) § 87(2)(b) - on June 30, 2011. As of the date of this report none of the aforementioned individuals has contacted the CCRB to provide testimony about his observations. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

**NYPD Statements:**

**Subject Officer: PO MICHAEL VERBRUGGE**

- *At the time of the incident, PO Verbrugge was a § 87(2)(b)-old Caucasian male with a shaved head and blue eyes who stood § 87(2)(b)*
- *On September 5, 2010, PO Verbrugge patrolled sector B of the 47<sup>th</sup> Precinct with PO Natalia Guzman-Morales between 3:00 p.m. and 11:35 p.m. PO Verbrugge was dressed in uniform and was assigned to RMP #2622, a marked vehicle.*

**Memo Book**

PO Verbrugge recorded entries in his memo book relevant to this incident (*encl. 7*). PO Verbrugge responded to an assault in progress at § 87(2)(b) at 4:49 p.m. He recorded "one under in front of § 87(2)(b) at 5:03 p.m.

**Arrest Report #** § 87(2)(b)

**Complaint Report #** § 87(2)(b)

**Witness Statement to PO Guzman-Morales' Injury**

PO Verbrugge completed the arrest report (*encl. 8*), UF-61 complaint report (*encl. 8*), and witness statement concerning the injuries sustained by PO Guzman-Morales during this incident (*encl. 9*).

§ 87(2)(g)

PO Verbrugge noted that physical force was used by the officers and indicated that a nightstick was used to restrain/remove/control.

### **CCRB Statement**

PO Verbrugge was interviewed at the CCRB on February 15, 2011 (*encl. 10*). At approximately 4:49 p.m. on September 5, 2011, PO Verbrugge and PO Guzman-Morales responded to an assault in progress at § 87(2)(b) in the Bronx. The location is a residential building consisting of multiple units on at least five floors. The building is not a NYCHA building. PO Verbrugge was not aware that the building was a Clean Halls building, but stated that it was a known drug-prone location. Pedestrians routinely gather around the building and drink alcohol on the streets. PO Verbrugge has never made a narcotics arrest at this location. He did not recall seeing any other pedestrians outside the building in the vicinity where § 87(2)(b) was seated.

Upon approaching the building, PO Verbrugge and PO Guzman-Morales saw § 87(2)(b) sitting alone speaking on his cellular phone on the front steps in front of the courtyard leading to the building's entrance. Because PO Verbrugge was unfamiliar with the layout of the building he approached § 87(2)(b) and asked him for directions to the basement. § 87(2)(b) ignored PO Verbrugge and continued his telephone conversation. In a louder tone, PO Verbrugge said, "Excuse me, sir. I'm looking for the basement. Can you tell me where the basement is? We have an emergency. I'm trying to get there. Somebody might be hurt." Again, § 87(2)(b) ignored PO Verbrugge. When PO Verbrugge questioned § 87(2)(b) whether he lived in the building, § 87(2)(b) failed to respond. PO Verbrugge said, "Look, if you don't live in the building can you please just not stand here? This is a drug-prone location. Can you please just take a walk? If you come back out, we're going to be interested in talking to you to see what's going on." PO Verbrugge simply wanted to isolate § 87(2)(b) from the assault in progress and have him move along. § 87(2)(b) ignored PO Verbrugge's request to vacate the premises. The initial conversation lasted two to three minutes.

§ 87(2)(b) remained at the location as PO Verbrugge and PO Guzman-Morales went searching for the basement around the corner of the building and found the entrance through a gated path. The two officers handled the assault in progress job for approximately ten minutes before diffusing the situation and completing a domestic incident report.

From there the two officers returned outside to the front of the building where they saw § 87(2)(b) standing alone in the same vicinity, a few feet from stairs leading to the courtyard. Suspicious that § 87(2)(b) had not heard PO Verbrugge's original request to disperse, PO Guzman-Morales approached him to investigate why he remained at the location and why he had failed to initially respond to PO Verbrugge's inquiry concerning the location of the basement. PO Verbrugge did not know whether § 87(2)(b) had a firearm or had anything else on his person that he shouldn't have been in possession of. PO Verbrugge did not observe any bulges on § 87(2)(b)'s person and did not suspect any criminality, although he suspected that § 87(2)(b) did not like the police and "was up to no good."

As PO Verbrugge remained quiet, PO Guzman-Morales approached § 87(2)(b) and asked, "Excuse me. What's going on? Did you not hear us before?" § 87(2)(b) continued his



telephone conversation and began walking away. To prevent him from fleeing, PO Guzman-Morales grabbed hold of his hand and said, “Look, I’m still trying to talk to you.” § 87(2)(b) shrugged PO Guzman-Morales off of him and head-butted her in the right side of her face. When head-butted, PO Guzman-Morales stumbled backwards and grabbed hold of § 87(2)(b) to control him. PO Verbrugge intervened and a physical struggle to gain compliance from § 87(2)(b) ensued. PO Guzman-Morales tried to handcuff § 87(2)(b) and all three individuals stumbled over each other and fell to the ground.

While on the ground, § 87(2)(b) became increasingly combative and kicked his legs, flailed his arms, and cursed in a loud voice, though PO Verbrugge could not recall specifically what § 87(2)(b) said. § 87(2)(b) kicked PO Verbrugge in the legs. In an effort to restrain him and avoid being repeatedly kicked, PO Verbrugge grabbed § 87(2)(b)’s legs. Meanwhile PO Guzman-Morales focused on § 87(2)(b)’s upper extremities and tried to handcuff him. Because he was focused on subduing § 87(2)(b)’s legs, PO Verbrugge did not recall seeing PO Guzman-Morales remove her baton or begin striking § 87(2)(b) with it. PO Verbrugge did not recall seeing § 87(2)(b) bite PO Guzman-Morales.

While securing § 87(2)(b)’s feet with one hand, PO Verbrugge used his radio and requested additional units. PO Guzman-Morales continued struggling with § 87(2)(b) to handcuff him. Throughout the process, § 87(2)(b) twisted his body and tried to tuck his hands underneath himself. When PO Guzman-Morales managed to cuff one of § 87(2)(b)’s hands, § 87(2)(b) placed his free hand on the other end of the handcuffs in an effort to prevent PO Guzman-Morales from fully detaining him. With the assistance of two to four additional uniformed officers, § 87(2)(b) was successfully subdued. During the process the officers repeatedly ordered § 87(2)(b) to surrender his hands, stop resisting, and stop kicking. Neither PO Verbrugge nor any other officer on scene initiated physical contact with § 87(2)(b) with their feet. No officer kicked § 87(2)(b) or dug their boots into his genitals. PO Verbrugge did not see § 87(2)(b) bleeding. PO Verbrugge did not recall saying or hearing another officer say, “Shut the fuck up,” “Fuck you,” or any other variation of the word “fuck.”

Once § 87(2)(b) was secured the officers drove him to the 47<sup>th</sup> Precinct stationhouse. PO Verbrugge escorted § 87(2)(b) into the stationhouse, searched him, and secured him in the holding cell. PO Verbrugge did not recall PO Guzman-Morales interacting physically with § 87(2)(b) inside the stationhouse. Inside the cell § 87(2)(b) began praying and cursing. He called PO Guzman-Morales “the devil.” While he was being finger-printed § 87(2)(b) complained of pain to his shoulder. An ambulance was called to the stationhouse to administer treatment to PO Guzman-Morales and § 87(2)(b). PO Verbrugge traveled with § 87(2)(b) in the ambulance to § 87(2)(b) where § 87(2)(b) was diagnosed with bruising.

PO Guzman-Morales was transported to the hospital for treatment to her finger, which § 87(2)(b) had squeezed tightly when PO Guzman-Morales reached for him before the struggle ensued. PO Guzman-Morales had strained ligaments in one of her fingers and incurred a red mark above her eye on the right side of her face from being head-butted by § 87(2)(b). PO Guzman-Morales had bruising on her right arm. PO Verbrugge had a twisted ankle but did not receive medical treatment.

**Subject Officer: PO NATALIA GUZMAN-MORALES**

- At the time of the incident, PO Guzman-Morales was a § 87(2)(b)-old Hispanic female with brown hair and brown eyes who stood § 87(2)(b).
- On September 5, 2010, PO Guzman-Morales patrolled sector B of the 47<sup>th</sup> Precinct with PO Michael Verbrugge between 3:00 p.m. and 11:35 p.m. PO Guzman-Morales was dressed in uniform and was the passenger of RMP #2622.

**Memo Book**

PO Guzman-Morales recorded entries in her memo book relevant to this incident (*encl. 11*). At 4:49 p.m. PO Guzman-Morales responded to an assault in progress at § 87(2)(b). She noted that a domestic incident report was prepared at 4:55 p.m. An arrest by PO Verbrugge was noted at 5:03 p.m. At § 87(2)(b) PO Guzman-Morales was en route to the hospital. She ended her tour at 11:35 p.m. Her memo book shows that she did not return to work until § 87(2)(b).

**Line of Duty Injury Report**

PO Guzman-Morales completed a line-of-duty (L.O.D.) report on September 5, 2010, documenting her injuries and describing the sequence causing them (*encl. 12*). § 87(2)(b)

§ 87(2)(b)

**Firearms Discharge/Assault Report**

PO Guzman-Morales documented § 87(2)(b)'s assault of her and the subsequent use of her expandable baton (*encl. 13*). PO Guzman-Morales reported that § 87(2)(b) punched/kicked her, bit her, and head-butted her. § 87(2)(g)

§ 87(2)(b). PO Guzman-Morales indicated that she struck § 87(2)(b) two times with her baton from a distance of one foot. She noted that the self-defense techniques she used were "Grappling" and "Take-down." The report was completed on September 5, 2010, and was approved by Sgt. Thomas Casey of the 47<sup>th</sup> Precinct.

**CCRB Testimony**

PO Guzman-Morales was interviewed at the CCRB on March 30, 2011 (*encl. 15*). PO Guzman-Morales, upon exiting the RMP parked by PO Verbrugge, noticed § 87(2)(b) sitting alone in the middle of the staircase outside the building. She approached him to ask whether he had called the police. PO Guzman-Morales could not recall whether § 87(2)(b) was speaking on the phone at the time that she first observed him. PO Guzman-Morales had knowledge that the job she and PO Verbrugge were responding to involved a dispute between a mother and son and suspected that § 87(2)(b) was the aggressor because he was the first pedestrian she saw on the sidewalk outside the building.

In response to PO Guzman-Morales' question, § 87(2)(b) looked at her, rolled his eyes, and looked away without responding. PO Guzman-Morales asked § 87(2)(b) if he had any problems with anyone, to which § 87(2)(b) looked at her once more, rolled his eyes, and looked the other way. At that point PO Guzman-Morales used her radio to get additional information regarding the location of the assault in progress from the 911 dispatcher. Upon learning that the assault was occurring in the basement of the building, PO Guzman-Morales informed § 87(2)(b) that she and PO Verbrugge were responding to a job within the building. Because people were both entering and exiting the building, PO Guzman-Morales warned § 87(2)(b) that he would be issued a summons for blocking pedestrian traffic if he failed to move by the time she and PO Verbrugge returned to the front of the building. Once more, § 87(2)(b) rolled his eyes and looked the other way. The initial conversation between § 87(2)(b) and PO Guzman-Morales lasted approximately one minute.

PO Guzman-Morales and PO Verbrugge found the basement through a gated entrance on the side of the building. They resolved the dispute and completed a domestic incident report. No arrests resulted from the job, which PO Guzman-Morales estimated took ten minutes to resolve. PO Guzman-Morales and PO Verbrugge left the basement and returned to the front of the building where they saw § 87(2)(b) sitting in the same spot on the staircase of a path leading towards the building's entrance. Upon seeing the officers approaching him, § 87(2)(b) – with his cell phone in hand – got up and walked to the corner of the steps on the sidewalk. PO Guzman-Morales approached § 87(2)(b) and asked, "Sir, can I have your ID? I'm going to issue you a summons for blocking pedestrian traffic." § 87(2)(b) looked at PO Guzman-Morales and rolled his eyes. When PO Guzman-Morales reiterated her request for his identification from a distance of approximately three feet, § 87(2)(b) raised his cell phone to his ear level, causing PO Guzman-Morales to fear for her safety. PO Guzman-Morales feared that § 87(2)(b) was preparing to strike either her or PO Verbrugge with the cell phone.

To prevent § 87(2)(b) from striking her, PO Guzman-Morales grabbed the hand which § 87(2)(b) was holding his phone with in order to place him under arrest. § 87(2)(b) used his free hand and shoved PO Guzman-Morales' hand away from his. PO Guzman-Morales then attempted to grab § 87(2)(b) by his shoulder, but he shoved her arms away from his body. At that point PO Verbrugge intervened and assisted in attempting to gain control of § 87(2)(b)'s hands and place him under arrest. § 87(2)(b) resisted by kicking the officers. His resistance caused him, PO Verbrugge, and PO Guzman-Morales to fall to the sidewalk. During the fall to the sidewalk PO Guzman-Morales retained her grasp of § 87(2)(b)'s arm. § 87(2)(b) head-butted PO Guzman-Morales in the right side of her face and placed his teeth onto her hand. PO Guzman-Morales managed to pull her arm back before § 87(2)(b) clenched his teeth.

While on the ground, PO Verbrugge and PO Guzman-Morales struggled to gain control of § 87(2)(b)'s hands and handcuff him because he repeatedly kicked the officers while on his back. When she was kicked in her leg, PO Guzman-Morales removed her asp and struck § 87(2)(b) in the legs an unknown number of times and repeatedly instructed him to, "Stop resisting!" The officers managed to place one of § 87(2)(b)'s hands into handcuffs, at which point PO Guzman-Morales reached for § 87(2)(b)'s free hand. § 87(2)(b) grabbed PO Guzman-Morales by her right middle finger and pulled on it tightly. Eventually, § 87(2)(b) was handcuffed, brought to his feet, and placed inside the RMP. PO Guzman-Morales denied seeing PO Verbrugge kick § 87(2)(b) in his groin while he was on the ground and denied that either she or PO Verbrugge directed any profanity towards § 87(2)(b) during this encounter. Though she admitted that

additional units were summoned and did respond to the location, PO Guzman-Morales could neither identify them nor describe their role or participation with § 87(2)(b)'s apprehension.

PO Guzman-Morales did not recall interacting with § 87(2)(b) inside the jail cell at the stationhouse. She was not involved in § 87(2)(b)'s arrest processing and did not initiate any physical contact with him or kick him. PO Guzman-Morales was at the stationhouse § 87(2)(b) before departing for the hospital. PO Guzman-Morales had a severe sprain on her middle finger and scrapes to her head. PO Guzman-Morales was not aware of any injuries sustained by either PO Verbrugge or § 87(2)(b).

**Witness Officer: PO WILLIAM KING**

- *At the time of the incident, PO King was a § 87(2)(b)-old Caucasian male with brown hair and hazel eyes who stood § 87(2)(b).*
- *On September 5, 2010, PO King patrolled sectors IJ of the 47<sup>th</sup> Precinct with PO John McLoughlin. PO King was dressed in uniform and was assigned to RMP #5229, a marked vehicle.*

**Memo Book**

PO King recorded entries in his memo book relevant to this incident (*encl. 18*). At 4:50 p.m. PO King backed sector B at § 87(2)(b). PO King arrived on scene at 4:54 p.m. One arrest was made at 5:20 p.m.

**CCRB Testimony**

PO King was interviewed at the CCRB on June 2, 2011 (*encl. 19*). At approximately 4:54 p.m. on September 5, 2010, PO King and PO McLoughlin arrived at § 87(2)(b) in order to provide backup for PO Guzman-Morales and PO Verbrugge. PO King and PO McLoughlin approached the basement of the building by passing through a metal gate. To the left of the building several people were skateboarding; PO King had no recollection of observing § 87(2)(b) (recognized by PO King in a photograph presented during his CCRB interview) standing or sitting outside the building as he approached. Upon arrival at the basement unit PO King saw PO Guzman-Morales speaking to the civilian involved in the domestic dispute. PO Guzman-Morales spoke with the individual for thirty seconds and successfully resolved the issue before she, PO Verbrugge, PO King, and PO McLoughlin returned to the front of the building to resume patrol.

As PO King was entering his RMP to resume patrol, PO McLoughlin alerted him that PO Guzman-Morales and PO Verbrugge were speaking to § 87(2)(b) on the sidewalk, approximately half a car-length away from a series of steps leading to the front entrance of the building. PO King never learned why PO Guzman-Morales and PO Verbrugge initiated their conversation with § 87(2)(b). Once alerted by PO McLoughlin, PO King glanced towards the building and saw § 87(2)(b) push PO Guzman-Morales in the chest one time as she and PO Verbrugge reached to grab and gain control of § 87(2)(b)'s hands. This sequence occurred less than thirty seconds after the four officers returned to the front of the building and occurred as PO King stood next to the RMP, parked approximately ten feet from where § 87(2)(b) was standing. PO King heard no conversation between § 87(2)(b) and PO Guzman-Morales.

Once pushed, PO Guzman-Morales ordered § 87(2)(b) to “stop resisting”; she did not fall to the ground when pushed. As PO King and PO McLoughlin approached the building to provide assistance, PO Verbrugge continued reaching for § 87(2)(b)'s hands but was unable to gain

control of them because § 87(2)(b) flailed his arms, pulled them back towards his body, and peddled backwards in order to create space between himself and PO Verbrugge. As the thirty-second struggle unfolded, § 87(2)(b) and the officers involved gradually moved towards the opposite side of the building's staircase. PO King denied seeing § 87(2)(b) use any additional force to avoid being handcuffed and denied seeing him head-butt PO Guzman-Morales. PO King intervened, placed his hands on § 87(2)(b)'s left shoulder, and attempted to pull his arm behind his back and subdue him. PO Verbrugge struggled with PO Guzman-Morales to gain control of § 87(2)(b)'s right arm. This struggle lasted approximately thirty seconds before PO King, PO Verbrugge, PO Guzman-Morales, and § 87(2)(b) fell to the ground. PO King landed on top of § 87(2)(b)'s chest and PO Verbrugge fell to the right of § 87(2)(b)'s body, positioned in between several scaffolding poles erected on the sidewalk.

Less than three seconds after the group fell to the ground § 87(2)(b) was handcuffed. PO King could not recall who handcuffed § 87(2)(b) but claimed that the only force used in subduing him was reaching for and grabbing his hands. PO King denied observing PO Guzman-Morales either remove her baton or strike § 87(2)(b) with it and denied seeing PO Verbrugge use his feet to grind his boot into § 87(2)(b)'s genitals. PO King denied hearing PO Verbrugge or PO Guzman-Morales order § 87(2)(b) to "shut the fuck up" and denied hearing either officer use any profanity while speaking to § 87(2)(b).

PO King denied seeing injuries to either § 87(2)(b) or PO Guzman-Morales, and denied hearing § 87(2)(b) complain of injuries. After § 87(2)(b) was handcuffed, PO King and PO McLoughlin resumed patrol. PO King never saw § 87(2)(b) inside the stationhouse because he and PO McLoughlin never returned to the stationhouse.

**Witness Officer: PO JOHN MCLOUGHLIN**

- *At the time of the incident PO McLoughlin was a § 87(2)(b)-old Caucasian male with black hair and brown eyes who stood § 87(2)(b)*
- *On September 5, 2010, PO McLoughlin patrolled sectors IJ of the 47<sup>th</sup> Precinct with PO William King between 3:00 p.m. and 11:35 p.m. PO McLoughlin was dressed in uniform and was assigned to RMP #5229, a marked vehicle.*

**Memo Book**

PO McLoughlin failed to bring his memo book when he was interviewed at the CCRB. Lt. Jennifer Silva of the Department Advocate's Office unsuccessfully attempted to aid the CCRB in procuring PO McLoughlin's memo book.

**CCRB Testimony**

PO McLoughlin was interviewed at the CCRB on June 3, 2011 (*encl. 17*). § 87(2)(g) Within one minute of receiving a call requesting additional units, PO McLoughlin and PO King arrived at § 87(2)(b) and parked the RMP ten feet from the curb outside the building. § 87(2)(b) (recognized in a photograph by PO McLoughlin) stood approximately ten feet from a staircase leading to the courtyard in front of the building's entrance facing the street from the sidewalk. From his vehicle PO McLoughlin heard PO Guzman-Morales order § 87(2)(b) to stop. PO McLoughlin does not know why PO Guzman-Morales was doing this; he did not see § 87(2)(b) committing a crime, denied having seen him seated on the staircase leading to the building's entrance, denied seeing § 87(2)(b) speaking on the phone, and could not recall anything about § 87(2)(b)'s behavior prior to having been ordered to stop by PO Guzman-Morales. After twenty seconds passed, § 87(2)(b)

§ 87(2)(b) pushed PO Guzman-Morales in the chest one time with his hand. PO Guzman-Morales did not fall to the ground but tried to prevent § 87(2)(b) from pushing her by grabbing his arms.

PO McLoughlin and PO King rushed towards § 87(2)(b) and all four officers struggled to gain control of § 87(2)(b)'s hands by reaching for and grabbing his arms. PO McLoughlin yelled loudly for § 87(2)(b) to surrender his hands and to stop resisting. He refused to do so. He flailed his arms and pulled them back towards his body to prevent the officers from gaining control over them. Apart from observing § 87(2)(b) push PO Guzman-Morales one time, PO McLoughlin did not see § 87(2)(b) exert any additional deliberate force against the officers at this point. PO McLoughlin denied seeing § 87(2)(b) headbutt PO Guzman-Morales.

Eventually PO McLoughlin and PO King grabbed § 87(2)(b) by his arms and pulled him to the ground, where he landed on his stomach and hid his hands underneath his body. § 87(2)(b) tightened his body and legs and refused to surrender his hands. PO McLoughlin continued ordering § 87(2)(b) to, "Stop resisting! Give me your hands!" PO McLoughlin handcuffed § 87(2)(b) after an approximate two-minute struggle in which he, PO King, and PO Verbrugge reached for and attempted to remove § 87(2)(b)'s hands from beneath his body. PO McLoughlin did not recall PO Guzman-Morales falling to the ground or becoming involved in § 87(2)(b)'s apprehension on the ground. PO McLoughlin could not describe any force used by PO Guzman-Morales on § 87(2)(b) because he was focused on gaining control of § 87(2)(b)'s hands. He denied seeing § 87(2)(b) bite or pull PO Guzman-Morales' finger, denied seeing PO Guzman-Morales strike § 87(2)(b) with her asp/baton, and denied seeing PO Verbrugge kick or place his foot onto § 87(2)(b)'s genitals. PO McLoughlin denied hearing either PO Guzman-Morales or PO Verbrugge use profanity while speaking to § 87(2)(b) and denied that either officer ordered him to, "Shut the fuck up."

Once § 87(2)(b) was handcuffed, PO King and PO McLoughlin resumed patrol. They did not return to the stationhouse and never saw § 87(2)(b) lodged in the cells. PO McLoughlin denied hearing § 87(2)(b) complain of injuries or request medical treatment. PO McLoughlin denied seeing injuries to either § 87(2)(b) or PO Guzman-Morales.

### **Medical Records**

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

## NYPD Documents

### Sprint

Sprint records (*encl. 23*) show that a male caller “§ 87(2)(b) dialed 911 at 4:41 p.m. and reported that a § 87(2)(b) was being assaulted by his mother in § 87(2)(b) apartment of § 87(2)(b). The caller stated that his mother was abusing him and that his mother picked up glass to hit him. No injuries were reported.

Sector 47B picked the job up and arrived at the scene at 4:43 p.m. Sector 47I arrived at the scene at 4:52 p.m. At 4:57 p.m. Sector 47A completed a domestic incident report. An arrest was made by 47B at 5:03 p.m.

### 47<sup>th</sup> Precinct Roll Call

The roll call for the 47<sup>th</sup> Precinct (*encl. 26*) confirms that PO Verbrugge and PO Guzman-Morales patrolled sector B on September 5, 2010. The same roll call shows that PO McLoughlin and PO King patrolled sectors I and J, and that PO Tyrone Furby and PO Joseph Helgersen patrolled sectors A and C.

### 47<sup>th</sup> Precinct Command Log

#### Prisoner Holding Pen Roster

These documents (*encl. 24 & 25*) show that § 87(2)(b) was logged into the 47<sup>th</sup> Precinct stationhouse at 5:10 p.m. § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were all logged into the command at 5:15 p.m.

### Arrest for Incident and Disposition

- Case number § 87(2)(b) remains open. The next scheduled court date is § 87(2)(b) in Bronx Supreme Court (*encl. 29*). § 87(2)(b) is charged § 87(2)(b).

### Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming negligent hiring practices by the NYPD, false arrest, excessive force, and deprivation of civil rights (*encl. 28*). The claim makes no mention of the monetary value sought by § 87(2)(b) as redress. Because the claim was filed with the Comptroller’s office more than ninety days following the incident it was disallowed. No 50-h hearing has been held or scheduled.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilian's CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

### **Subject Officer's CCRB History**

- PO Guzman-Morales has been a member of the service for five years and there are no substantiated CCRB allegations against her (encl. 1A).
- PO Verbrugge has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1B).

## **Conclusion**

### **Identification of Subject Officers**

§ 87(2)(b) described the officer who requested his identification, struck him in the legs with the baton, cursed at him, and kicked in the back inside the stationhouse as a uniformed Hispanic female in her thirties who stood 5'3", 125 lbs. Additionally, he claimed to have read the name "Morales" from her uniform. PO Guzman-Morales matches the description provided by § 87(2)(b) and acknowledged her role in this incident. § 87(2)(g)

§ 87(2)(b) described the officer who grinded his boot into his genitals and cursed at him as a uniformed Caucasian male in his thirties who stood 6', 180 lbs. He stated that the officer responsible for these actions arrived at the building with PO Guzman-Morales. PO Verbrugge matches the physical description provided by § 87(2)(b) and confirmed that he was the first male officer on scene. § 87(2)(g)

### **Allegations Not Pleaded**

Over the telephone on September 7, 2011, § 87(2)(b) alleged that PO Guzman-Morales told him to, "Shut the fuck up and get back!" However, § 87(2)(b) failed to cooperate with the investigation and never provided formal testimony about this incident. Further, § 87(2)(b) the complainant, did not make this allegation during his interview at the CCRB. § 87(2)(g)

### **Investigative Findings and Recommendations**

- **Allegation A: Abuse of Authority: In front of § 87(2)(b) in the Bronx PO Natalia Guzman-Morales stopped § 87(2)(b)**

It is undisputed that PO Guzman-Morales initiated the stop of § 87(2)(b) outside of § 87(2)(b) § 87(2)(g)

PO Guzman-Morales testified that after resolving the incident inside § 87(2)(b), she returned to the front of the building and observed § 87(2)(b) seated on the staircase in the precise location where she had previously warned him about receiving a summons for blocking pedestrian traffic. Upon sight of PO Guzman-Morales, § 87(2)(b) got up from his seated position and walked to the corner of the staircase. Intent on issuing § 87(2)(b) a summons for blocking pedestrian traffic, PO Guzman-Morales approached him and requested that he furnish his identification.



§ 87(2)(g)

[REDACTED]

[REDACTED]

In *New York v. De Bour*, 40 N.Y.2d 210 (1976) [encl. L1-2], the courts examined several levels of police intrusion and established key criteria which assist police officers in carrying out their law-enforcement duties. It ruled that “where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the [Criminal Procedure Law] authorizes a forcible stop and detention of that person.” At that level, NYS Criminal Procedure Law §140.50 [encl. L3] permits police officers to demand a name, address, and explanation of the individual’s conduct.

§ 87(2)(g)

[REDACTED]

[REDACTED] it is therefore recommended that **Allegation A** be substantiated.

- **Allegation B: Force: In front of** § 87(2)(b) **in the Bronx PO Natalia Guzman-Morales struck** § 87(2)(b) **with an asp.**

It is undisputed that PO Guzman-Morales struck § 87(2)(b) with her asp. § 87(2)(g)

[REDACTED]

§ 87(2)(b) alleged that in response to him questioning PO Guzman-Morales about why she snatched his cell phone from his hand, PO Guzman-Morales removed her baton and struck him approximately ten times in the left knee as she ordered him to get onto his knees. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g) PO Guzman-Morales testified that she removed her asp and struck § 87(2)(b) in the legs only after he had repeatedly pushed her arms away from him while standing, head-butted her in the face during the fall to the sidewalk, and attempted to bite her hand. § 87(2)(g)

§ 87(2)(g). Specifically, PO Verbrugge confirmed seeing § 87(2)(b) push and head-butt PO Guzman-Morales, but denied seeing him bite her. PO King and PO McLoughlin affirmed that § 87(2)(b) pushed PO Guzman-Morales, but both officers denied observing any additional force exerted by § 87(2)(b) against PO Guzman-Morales, and specifically denied observing him head-butt her. § 87(2)(g)

New York State Criminal Procedure Law §35.30 [encl. L4] discusses the justification for the use of physical force by officers attempting to make an arrest and authorizes police officers to use physical force “when and to the extent he reasonably believes such to be necessary to effect the arrest...or to defend himself or a third party from what he reasonably believes to be the use of imminent used of physical force.”

§ 87(2)(g)

As such, it is recommended that **Allegation B be exonerated.**

- **Allegation C: Force: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge used physical force against § 87(2)(b)**
- **Allegation D: Discourtesy: In front of § 87(2)(b) in the Bronx and at the 47<sup>th</sup> Precinct stationhouse PO Natalia Guzman-Morales spoke obscenely and rudely to § 87(2)(b)**
- **Allegation E: Discourtesy: In front of § 87(2)(b) in the Bronx PO Michael Verbrugge spoke obscenely and rudely to § 87(2)(b)**
- **Allegation F: Force: At the 47<sup>th</sup> Precinct stationhouse PO Natalia Guzman-Morales used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that as he was on the ground PO Verbrugge placed his boot into his genitals and rubbed it there for approximately thirty seconds. § 87(2)(g)

In addition, § 87(2)(b) claimed that as he was being ushered towards the RMP he requested that the officers retrieve his cell phone from the sidewalk. § 87(2)(b) alleged that both PO Guzman-Morales and PO Verbrugge replied, “Shut the fuck up!” All officers interviewed in connection with this investigation denied that this comment was made. § 87(2)(g)

Lastly, § 87(2)(b) alleged that as he was being lodged into the cell at the 47<sup>th</sup> Precinct stationhouse PO Guzman-Morales told PO Verbrugge, “No, fuck him” and kicked § 87(2)(b) in the back into the cell. Both PO Verbrugge and PO Guzman-Morales denied that this occurred. § 87(2)(b) indicated over the telephone that he did not observe § 87(2)(b) being lodged in the jail cell and claimed that § 87(2)(b) was already in the cell when he and the other individuals arrested along with him were lodged into the cells. Though § 87(2)(b) did observe a verbal exchange between § 87(2)(b) and a male officer yet to be identified, he denied observing a female officer speak to § 87(2)(b) while in the jail cell and denied observing any physical force used against § 87(2)(b) by any officer inside the 47<sup>th</sup> Precinct stationhouse. § 87(2)(g)

§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

§ 87(2)(b) it is recommended that  
**Allegations C-F be unsubstantiated.**

- § 87(2)(g), § 87(4-b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

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Team: 1

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